



An Assignment on
Principles of Inheritance in Muslim Law

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Introduction

The Islamic law of inheritance, known as *'Ilm al-Fara'id* (the science of the ordained shares), is a cornerstone of Muslim Personal Law. Its principles are derived primarily from the Holy Qur'an, making it a divinely ordained system designed to ensure the just and equitable distribution of a deceased person's property. The system is meticulous, aiming to prevent the concentration of wealth and to provide for the economic needs of the deceased's family, particularly women and children who had limited inheritance rights in pre-Islamic Arabia.

Islamic law of inheritance is the most exact and scientific law and the Muslim jurists laid great importance on the law of inheritance and they would they would frequently repeat the saying of the prophet, "Learn the laws of the inheritance and teach them to the people; for they are one-half of useful knowledge." Modern authors have admired the Islamic system of inheritance for its utility and formal excellence. And it has been praised and admired for its completeness. In this assignment we will discuss the general principles of Islamic Law of Inheritance.

1. Sources of Islamic law of Inheritance

Muslim jurists recognize only three sources of Islamic law of inheritance namely: Quran, Hadith and Ijma (The Consensus of Islamic Scholar). Unlike the other branches of law, no reliance has been made on Qiyas or analogy with respect to laying down the law of inheritance.

2. Heritable Property

All properties of the deceased Muslim are subject to inheritance by his heirs. Islamic law doesn't recognize any distinction between –

- i. ancestral and self-acquired property
- ii. movable and immovable property
- iii. Joint and separate property
- iv. corpus and usufruct property
- v. corporal and incorporeal property.

3. Inheritance opens at the time of death

Islamic law doesn't recognize a birthright. Inheritance opens on the death of the propositus. The question of devolution of inheritance, therefore, rests entirely on the exact time of such death, the order of death being the sole guide.

4. Doctrine of representation

Islamic law of inheritance doesn't recognize representation. The son of a deceased person shall not represent such person if he died before his father. He shall not stand in the same place as the deceased would have done had he been living, but shall be excluded from the inheritance if he has paternal uncle. However, section 4 of the Muslim Family Laws Ordinance, 1961 has recognized the doctrine of representation.

5. A Male takes double of a female

Both males and females have their rights over the property of propositus. A son, for example, takes two portions, and a daughter takes one portion; they inherit as residuaries. In the like manner, a brother takes double of a sister, when they inherit as residuary.

6. Primary of fundamental heirs are never excluded

Primary heirs – father, mother, husband, wife, son and daughter are not excluded. These six persons must inherit if otherwise not excluded due to some contingency.

7. Persons excluded from the right of inheritance

The following persons are excluded from inheritance. Homicide, Difference of religion, Illegitimacy, Alien enemy and Slavery.

Under the Sunni law, a person who has caused the death of another person, whether intentionally or by mistake, negligence or accident, is debarred from the right of succession to the property of the victim.

A non-Muslim can't inherit and vice Versa. When once a person has changed his religion and changed his personal law, the new law will govern him in the matter of inheritance. So, a non-Muslim can't claim to inherit a relation who has been converted to Islam.

An illegitimate person can't inherit from the father, but he or she can inherit from the mother. When a woman dies leaving a husband and an illegitimate son of her sister, the husband takes one-half as sharer and the rest half goes to the illegitimate son of the sister, as he is related to the deceased through his mother.

An alien enemy is excluded from the right of inheritance. Alien enemy means a person who is or has been fighting against the sovereignty of the state in which he is a citizen. He is deprived from the right of inheritance of a person of that state.

A slave, in Islamic law, is not entitled to inherit from a free man. But it has become obsolete, as slavery has been abolished internationally after Slavery Act, 1483.

8. Kinds of heirs

According to Hanafi law, heirs are of seven types- Three principal and four subsidiary. The three principal classes are-

- i. Quranic heirs, called sharers;
- ii. Agnatic heirs, called residuaries;
- iii. Uterine heirs, called Distant Kindred.

The number of sharers is twelve and the number of residuaries is eighteen. The four subsidiary classes are the following;

- iv. Successor by contract;
- v. Acknowledged kinsman;
- vi. Universal legatee
- vii. Escheat

When there are neither sharers nor residuaries nor distant kindred, the inheritance devolves on the subsidiary heirs, stated above, among whom each class excludes the next.

9. Dual Capacity

Six persons can enjoy the right of dual capacity, that is, they can inherit both as sharers and as residuary. They are father, grandfather, daughter, full sister, consanguine sister and son's daughter.

If there is residue after the payment of the sharers, the residue shall revert to these persons in order of preference.

10. Right of a divorcee

A divorced wife is entitled to inherit from the property of her husband suffering from death-illness, if he dies within the period of iddat.

11. Payment of legacies, debts and funeral expenses

The Quran states that the heirs are entitled to inherit from the property of the propositus only after the payment of legacies, if any, repayment of debts, if any, and also funeral expenses. So after discharging of the above, the residue, if any, shall be distributed among the heirs.

12. Nearer in degree excludes the more remote

There are eighteen number of residuaries who inherit only when residue is left after satisfying the claims of the sharers or when there is no sharer. The residue goes to the residuaries in order of preference. The first excludes the second, the second excludes the third and so on. For example, father excludes the father's father, mother excludes the mother's mother, a son excludes the son's son.

13. Right of inheritance of missing person

Under Hanafi Law, a missing person is to be treated alive till the lapse of 90 years from the death of his birth. But section 108 of the Evidence Act provides that when the question is whether a man is alive or dead, and it is proved that he has not been heard of for seven years by those who would naturally have heard of him, if he had been alive, the burden of proving that he is alive is shifted to the person who affirms it. But this section supersedes the Muslim Law. So if a person die leaving a legacy in favour of another who is missing, the legacy will be kept in abeyance until it is ascertained whether he is dead or alive, as in the case of a partition of inheritance.

14. Rights of an unborn child to inheritance

An unborn child in the womb is entitled to inheritance. The amount, to be reserved, is variable depending on the position of other heirs. If a man, for example, dies leaving a pregnant wife, and a mother who acknowledges the pregnancy, in which case the wife is paid an eighth and the mother a sixth, because if the foetus be born alive, the wife would receive an eighth, and the mother a sixth, but if it be not born alive, the wife would receive a fourth, and the mother a third. One-sixth and one-eighth are, therefore, paid immediately, as these are their portions in all events.

15. Death in Common Calamity

If more than one person dies in a common disaster, like an earthquake, train or bus accident, and if it is not possible to prove the sequence of the death, the estate of each of them would be inherited by his/her heirs, and there would be no mutual rights of inheritance between them. Thus the property would be distributed among the surviving heirs.

Conclusion:

The Islamic law of inheritance is a comprehensive and sophisticated system that ensures a wide and just distribution of property among the family members of a deceased Muslim. Its principles, rooted in divine scripture, are systematic and detailed, providing clear rules to avoid disputes. While its traditional rules are foundational, statutory modifications, such as the Muslim Family Laws Ordinance, 1961, in Bangladesh, demonstrate its capacity to adapt to contemporary social needs while respecting its core tenets of fairness and equity.